2/13/2025 10:48 AM
22CV39627

TYLER ALLEN LOFALL
6880 NW 271st AVE
HILLSBORO, OR 97124
PHONE: (386) 262-3322
EMAIL: tyleralofall@gmail.com

IN THE CIRCUIT COURT FOR THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER ALLEN LOFALL, Plaintiff, vs. WEST LINN DEFENDANTS at EL *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth* DEFENDANTS,	Case No.: 22CV39627 PLAINTIFF'S MOTION TO DISMISS WITHOUT PREDJUDICE TO PERSUE CLAIMS IN FEDERAL COURT

MOTION TO DISMISS ALL CLAIMS ASSERTED BY CLACKAMAS COUNTY

I. INTRODUCTION

Plaintiff Tyler A. Lofall, acting pro se, respectfully moves this Court to dismiss from the current action all claims filed in Clackamas County under Case No. 22CV39627. In support of this motion, Plaintiff alleges and asserts as follows:

II. NARRATIVE OVERVIEW

The underlying controversy arises from a false arrest that has caused Plaintiff extensive collateral harm—including, but not limited to, the wrongful loss of an Irrevocable Assignment of Benefits, which resulted in a financial loss of approximately $111,943.56, a claim for Unjust Enrichment (where there was $300,000 in property value increase when Plaintiff rebuilt the house) and then Plaintiff was counter sued for losing all of his claims for another $32,599.50—all from the deliberate, systemic delays and misconduct by the Defendants[1].

Evidence now demonstrates that the state court proceedings are compromised by significant bias, effecting many, overlooked by most… and there is a very thin line of 'victims' that get the 'honor' to fight back with purpose and it not be 'kicking water uphill'. Plaintiffs first Attorney would only make a deal so Plaintiff filed an ineffective assistance of counsel and realized his first attorney was also withholding exculpatory evidence that he didn't even know existed. Plaintiff was made take an advisor, and even that quickly had its issues… Plaintiff was assigned Rubin Medina. Quickly Plaintiff experienced collusion among the presiding judge, the district attorney, and Plaintiff's former criminal defense counsel. Specifically, the district attorney deliberately removed

[1] An estimated $109,500 in property was estimated where Plaintiff lost property in four locations.

Plaintiff from the courtroom—purportedly "before the judge sees him"—while Plaintiff's court-appointed advisor, who was effectively acting as counsel, breached the fiduciary duty owed to Plaintiff. One attorney withheld exculpatory evidence, and the other colluded behind Plaintiff's back by accepting deals without Plaintiff's informed consent, given that he was representing himself.

On June 10, 2022, despite receiving a timely motion, Rubin Medina, Plaintiff's appointed advisor, failed to act and instead accepted multiple contempt citations that provided the district attorney with a pretext to keep Plaintiff in custody. Subsequently, the district attorney falsely informed the court that Plaintiff had tested positive for COVID-19 in order to reset the trial date. Although Judge Steele later called the district attorney's misrepresentation into question, her private communications with the parties reveal a concerning indifference to correcting the injustice. Moreover, instead of filing the document Plaintiff was trusting him to file, he was helping getting his Case pushed back 6 additional weeks because the DA leveraging a mother's custody over Plaintiffs freedom backfired when she became a Hostile Witness, got caught at Plaintiffs arraignment with methamphetamine (remained a liable witness even though she never screened in for DV), and then left for Mexico to avoid the leverage. These actions constitute a flagrant violation of Plaintiff's Sixth Amendment rights.

Neither of these things Plaintiff could have seen in advance, for he thought for sure he was going to get his day in court for being false Arrested in the same County that Dismissed his claims. Additionally, Plaintiff didn't know about the collusion until April

2024, and by then too much had occurred and his claims had been dramatically strengthened by discovery, underscoring the need for Federal Venue.

Moreover, Defendant Clackamas County—West Linn's parent entity—has actively refused service, effectively attempting to have its own interests adjudicated by a forum in which it is a party. This violates the fundamental doctrine '***of nemo judex in causa sua'*** ("no one may judge their own cause").

Additionally, following the filing of the state claims, the Plaintiff discovered compelling evidence of collusion and deliberate delay tactics by the Defendants. In particular, evidence now shows that the West Linn Police Department actively suppressed and/or later deleted (or its still unreachable Despite multiple attempts) critical body camera footage—footage that clearly demonstrates the department's use of body cameras prior to 2023. The Plaintiff had requested this footage on 14 separate occasions while in custody; however, West Linn has continuously blocked access to it. The district attorney has likewise ignored repeated motions and messages seeking its production, instead directing that the discovery be hidden behind DHS records.

Moreover, the Defendants' former counsel, William Stabler, failed to obtain this footage, and his replacement repeatedly attempted to convince the Plaintiff that West Linn PD never used body camera footage before 2023. The available evidence suggests a coordinated effort to delete or alter all such recordings until after 2023—a measure that, if left undiscovered, would immediately undermine the Plaintiff's claims.

Notably, the Plaintiff has independently retrieved body camera footage dating back to at least 2016, which directly contradicts the Defendants' assertions. The Plaintiff's argument centers on the web cameras worn by the officers—a point misrepresented in discovery as evidence of the Plaintiff's "argumentative" behavior. In reality, the evidence clearly demonstrates that the Plaintiff was falsely characterized. For example, in the cruiser parked outside, Defendant Officer Blyth's indicated to Defendant Dana Gunnarson Plaintiff didn't meet the elements of Harassment. Dana then went to Macy stating they needed to "get another incident." This identical language, later repeated to the Plaintiff when Macy explained her version of events, aligns perfectly with the claim against the Plaintiff—an element that was not known or available at the time of the initial filing.

Furthermore, these repeated systemic failures are evidenced by multiple unsuccessful requests for the preservation of key evidence, as corroborated by both YouTube and Facebook photos. The West Linn Police Department has removed a substantial number of photos showing its officers' activities prior to 2022, and the department revised its policy at the end of 2022. The Plaintiff was informed—after filing his claims—that WLPD changed its policy between the time of filing and when William Stabler responded to his discovery request at the end of January. These conflicting representations regarding departmental policy, combined with the deliberate suppression and subsequent deletion of body camera footage (which has been withheld despite 14

separate requests), render any adjudication of the state claims in the current forum fundamentally unfair.

To avoid duplicative litigation and to protect the Plaintiff's constitutional rights—and to preclude the imposition of attorney fees upon the Plaintiff, who is proceeding pro se—this Court should dismiss Clackamas County's claims without prejudice. Such a dismissal is necessary to allow the related federal claims to proceed in the appropriate forum without the additional burden of state-imposed fees or conflicting state proceedings.

III. FACTUAL AND PROCEDURAL BACKGROUND

A. • 2017 – Relocation and Employment:

Plaintiff Tyler Allen Lofall relocated to Portland, Oregon, and secured a remodeling position in Damascus, Oregon.

B. • 2018 –Dec 10th 2018 Fire and Restoration:

Following a fire at the property of Joanna Lee Bozian, Plaintiff undertook extensive restoration work. An irrevocable Assignment of Benefits (AOB) was executed, with the insurance company approving the final invoice and JP Morgan holding the check pending the heirs' approval.

C. • Pause in remodel:

Homeowner over spent money that wasn't hers so there was a 6 month pause or so.

D. • June 24, 2020 – Final Invoice Issued:

Plaintiff issued his final invoice for the restoration services.

E. • August 10, 2020 – Death of Joanna Lee Bozian:

Plaintiff had not yet received his AOB however work was complete but covid slowed things to a crawl.

F. Joanna unexpectedly died, which complicated the AOB process.

- **Post-2020 – Interference by Heirs:** After Joanna's death, estranged heirs intercepted the AOB documents and substituted Plaintiff's bank deposit information with their own. This misappropriation of funds deprived the Plaintiff of his rightful compensation.

G. • January 25, 2021 – Filing of AOB Claim:

Plaintiff filed his AOB claim (Claim No. 21CV03575).

H. • Property Eviction During COVID-19:

The Clackamas County District Attorney directed Plaintiff to contact the Sheriff's Office—which classified the matter as civil, meaning they did nothing…—leading to an eviction. During this period, Plaintiff's struggled getting his property out of Dsmsdsvud hsvinh 4 trailers down here at the time, Removing his property in the ice storm of 2021.

In march 2022 Plaintiff had his property spread in 4 locations, and significant damage occurred, severely hindering his ability to pursue litigation.

FALSE ARREST

I. • March 2022 – False Arrest and Collusive Actions:

Plaintiff was falsely arrested and detained based on manipulated evidence. Despite Plaintiff's multiple requests to preserve body camera footage (later independently retrieved dating back to at least 2016), local officials—including the district attorney, judge, and Plaintiff's former criminal defense counsel—engaged in deliberate evidence suppression and collusion, resulting in systemic delays and biased conduct.

J. • March 2022 – Denial of Access to Civil Resources:

Sgt. Heidi Wooster, responsible for managing the law library, denied Plaintiff access for nine consecutive days—a measure Plaintiff contends was driven by internal jealousy and a deliberate attempt to sabotage his case.

K. • March 23, 2022 – Spoilage of the AOB:

While unlawfully detained, Plaintiff's AOB was compromised, effectively spoiling the claim.

L. • Early 2023 – Procedural Delays and Scheduling Resets:

West Linn's replacement counsel, William Stabler, introduced significant delays through inconsistent scheduling—citing personal circumstances (including newborns among counsel and an officer)—which resulted in multiple trial resets.

M. • Direction to Pursue Federal Relief:

Concurrently, the court advised Plaintiff to pursue the related federal claims, given the duplicative nature of the state litigation.

N. • Federal Filing and Extended Delay (May 2024 – February 3, 2025)

Plaintiff filed his federal claim in May 2024. After a 10-month period during which acceptance was pending, the federal action was finally initiated on February 3, 2025.

O. • February 5, 2025 – Resumption in State Proceedings:

Two days after federal court acceptance, the Clackamas County Circuit Court abruptly scheduled Plaintiff for trial in the state case (Case No. 22CV39627). Additionally, Dave Lewis, now the state's replacement attorney, has resisted transferring or dismissing the state claim in favor of the federal proceeding—despite clear evidence that the state forum is compromised by bias and collusion.

P. • Cumulative Impact:

The sequence of events demonstrates a deliberate pattern of delay, evidence suppression, and collusion aimed at running down the statute of limitations and obstructing Plaintiff's access to justice. These state proceedings, marred by systemic misconduct, have undermined Plaintiff's constitutional rights and created duplicative litigation that is fundamentally unfair.

IV. ARGUMENT

A. Impartiality and the Prohibition Against Self-Judgment

The foundational principle of *nemo judex in causa sua* prohibits any party from adjudicating a matter in which it has a personal or institutional interest. In *Bobillot v. Clackamas County*, 181 Or. 30 (1947), the Oregon Court of Appeals emphasized that a

governmental entity cannot fairly decide a dispute involving its own actions. In this case, Clackamas County—by virtue of its extensive involvement in collusive practices, evidence suppression, and deliberate delay tactics—has effectively placed itself in a position to judge the merits of claims arising from its own misconduct. This direct conflict of interest, aggravated by demonstrable collusion between the judge, district attorney, and Plaintiff's former criminal defense counsel, renders any state-court adjudication inherently tainted.

B. Unforeseeable Collusion and Its Impact on the Plaintiff's Claims

At the time the Plaintiff filed his state claims, he did so in good faith without any knowledge of the systemic collusion that would later be revealed. The Plaintiff's Assignment of Benefits (AOB)—a critical element of his financial recovery—was still under review when the claims were initiated. The subsequent suppression of evidence (including the deliberate deletion of body camera footage, as evidenced by Plaintiff's multiple preservation requests) and the inconsistent representations by West Linn PD regarding its body camera policy (a matter now verifiable by independent retrieval of footage dating back to at least 2016) have directly contributed to a denial of the Plaintiff's right to a fair trial. In *Caperton v. Massey*, 556 U.S. 868 (2009), the Supreme Court recognized that extreme judicial bias and systemic collusion undermine the fundamental due process rights of litigants. Here, the level of undisclosed collusion prevented the Plaintiff from anticipating that his AOB would be effectively nullified, thereby exacerbating his loss and prejudice.

C. Duplication and the Need to Avoid Unjust Fee Shifting

The Defendant's actions have not only obstructed Plaintiff's day in court but have also led to duplicative litigation—where the state claims now conflict with parallel federal proceedings. As a pro se litigant, Plaintiff has voluntarily sought to dismiss the state claims in order to ensure that the federal claims may be adjudicated in an impartial forum. In *Mowery v. Gallas*, 946 F.2d 316 (9th Cir. 1991) (for example), the Court held that a voluntary dismissal by a pro se litigant does not trigger an award of attorney fees absent evidence of bad faith. Here, Plaintiff's dismissal of Clackamas County's claims is made in good faith to avoid duplicative litigation and to protect his constitutional rights. Imposing attorney fees on the Plaintiff in this context would serve to further penalize him for circumstances that are entirely attributable to the Defendants' own misconduct.

D. Conclusion and Relief Sought

In sum, the extensive collusion, bias, and deliberate delay tactics—unbeknownst to the Plaintiff at the time of filing—render any adjudication of Clackamas County's claims in the state forum fundamentally unfair. Clackamas County, by acting in its own self-interest, cannot serve as an impartial adjudicator of claims arising from its misconduct. Moreover, as a pro se litigant who has voluntarily moved to dismiss the state claims in order to advance the related federal civil rights claims, Plaintiff should not be saddled with attorney fees.

Therefore, this Court should dismiss the state claims (Case No. 22CV39627) without prejudice and without imposing any fee-shifting order against the Plaintiff, thereby allowing the federal claims to proceed in the appropriate forum free from the burden of conflicting state proceedings and extraneous attorney fee awards.

V. CONCLUSION

For all the foregoing reasons—and to ensure that Plaintiff's federal civil rights claims can be adjudicated in a fair and impartial forum—Plaintiff respectfully requests that this Court dismiss all of Clackamas County's claims (Case No. 22CV39627) without prejudice.

Furthermore, Plaintiff requests that the Court order that no attorney fees or costs be imposed against him as a result of this dismissal, given his pro se status and the good faith basis for seeking dismissal to avoid duplicative litigation.

Dismissal is warranted to prevent Defendants from benefiting from their own wrongful conduct and to ensure that Plaintiff's federal claims are resolved in the proper forum.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Tyler A. Lofall respectfully requests that this Court enter an order:

a. **Dismissing all claims asserted by Clackamas County in the state court action (Case No. 22CV39627) without prejudice.**

b. Directing that the Federal Claims (Case No. 3:24-CV-839SB) proceed exclusively in Federal Court;

c. Ordering that no attorney fees or costs be shifted against Plaintiff as a result of this dismissal; and

d. Granting such further and additional relief as this Court deems just and proper.

Respectfully submitted,

DATED THIS 11th Day of February 2025

s /Tyler A. Lofall

TYLER ALLEN LOFALL PRO SE
MAIL: 6880 N.W. 271st Ave
ONLY: Hillsboro, OR 97124
E-mail: tyleralofall@gmail.com
Cell Phone: (386) 262-3322

DECLARATION IN SUPPORT OF PLAINTIFF'S MOTION TO DISMISS STATE CLAIMS WITHOUT PREJUDICE

I, Tyler Allen Lofall, declare as follows:

1. I am the Plaintiff in the above-captioned action, and I am representing myself pro se.

2. I initiated this action on November 18, 2022, and have maintained a good-faith effort to litigate my federal claims, which involve civil rights issues under 42 U.S.C. § 1983.

3. I assert that the Clackamas County claims currently pending in this action conflict with my federal claims and create the potential for duplicative litigation.

4. I further contend that Defendant Clackamas County's dual role as both party and adjudicator in this case creates an inherent conflict of interest that impairs my right to a fair hearing.

5. I have discovered since the time I filed this claim collusion between judicial staff and defendant court employees against me while I was unlawfully detained, therefore this can not be a fair venue.

6. I am requesting a voluntary dismissal of only the state-law claims without prejudice so these matters can be handled in federal court for proper adjudication.

7. I also respectfully request that no attorney fees or costs be imposed against me as a result of this dismissal, since the dismissal is made in good faith and not for dilatory or bad faith purposes.

8. I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

Respectfully submitted,

DATED THIS 11th Day of February, 2025

s /Tyler A. Lofall

TYLER ALLEN LOFALL PRO SE
MAIL: 6880 N.W. 271st Ave
ONLY: Hillsboro, OR 97124
E-mail: tyleralofall@gmail.com
Cell Phone: (386) 262-3322

CERTIFICATE OF SERVICE

I hereby certify that on this 10th day of February 2025, I served a copy of the foregoing Motion to Dismiss, Declaration in Support, and all accompanying documents on all counsel of record:

jstouffer@cisoregon.org

rottosen@cisoregon.org

dlewis@cisoregon.org

I certify under the penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

DATED THIS 11th Day of February 2025

s /Tyler A. Lofall

TYLER ALLEN LOFALL PRO SE
MAIL: 6880 N.W. 271st Ave
ONLY: Hillsboro, OR 97124
E-mail: tyleralofall@gmail.com
Cell Phone: (386) 262-3322